

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 18, 2026, AT 8:30 A.M.

Nowhere in the Rule of Court does it require a party to notify the court about a conditional settlement not completed as agreed. And, again, it is unclear how defendant could not complete an agreement if, as plaintiff argues, one was never executed.

Accordingly, plaintiff's motion is denied without prejudice.

3. M-CV-0087130 WELLS FARGO BANK v. SEGON, JOSEPH

Plaintiff's Motion for Judgment on the Pleadings and of Nonappearance

Request for Judicial Notice

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff's motion for judgment on the pleadings is granted.

The court may grant a motion for judgment on the pleadings in favor of a plaintiff where the complaint states facts sufficient to constitute a cause of action, and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The grounds for the motion must appear on the face of the challenged pleading or based on facts which the court may judicially notice. (*Id.* subd. (d).) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.)

Pursuant to the court's order, defendant is deemed to have admitted all operative facts alleged in the complaint. Judgment on the pleadings is appropriate in these circumstances. (Code Civ. Proc., § 438, subd. (c)(1)(A).) Judgment shall be entered in favor of plaintiff and against defendant in the principal amount of \$15,343.85, plus court costs in the amount of \$565 and attorney's fees in the amount of \$800, for a total judgment of \$16,708.85.

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